

		manner. (ROA 56, Lyons Decl. ¶ 14.) VPP's principals have never visited Plaintiff's California office. (Id. ¶ 20.) VPP's dealings with Plaintiff did not require anyone from VPP to travel to California and California's location was immaterial to the performance of the parties' agreement. (Id. ¶ 21.) Accordingly, the motion is GRANTED. Plaintiff's objection to the Declaration of Nick Szabo on the grounds that it does not comply with CCP §2015.5, as it was executed outside of California and does not state that it was made under penalty of jury under the laws of the State of California is OVERRULED as the declaration has been amended to indicate compliance with section 2015.5. Plaintiff's request for judicial notice is DENIED as immaterial to the resolution of this motion. <i>Moving Party to give notice.</i>
102	Smartstop Storage Advisors, LLC vs. Hernandez, 25-01528578	Defendant Prime Group Holdings, LLC ("Prime") moves for an order requiring plaintiff SmartStop Storage Advisors, LLC ("SmartStop") to file an undertaking in the amount of \$500,000 pursuant to Code of Civil Procedure section 1030. Code of Civil Procedure section 1030 provides, in relevant part: "(a) When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney's fees which may be awarded in the action or special proceeding. For the purposes of this section, "attorney's fees" means reasonable attorney's fees a party may be authorized to recover by a statute apart from this section or by contract. "(b) The motion shall be made on the grounds that the plaintiff resides out of the state or is a foreign corporation and that there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding. The motion shall be accompanied by an affidavit in support of the grounds for the motion and by a

memorandum of points and authorities. The affidavit shall set forth the nature and amount of the costs and attorney's fees the defendant has incurred and expects to incur by the conclusion of the action or special proceeding."

A moving defendant is "not required to show that there [is] no possibility that [the plaintiff] could win at trial, but only that it was reasonably possible that [the defendant] would win." (*Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1432.)

Defendant Rene Hernandez served as SmartStop's Director of Revenue from January 1, 2024 to November 22, 2025. He resigned from his position with SmartStop and is now employed by Prime. SmartStop alleges one cause of action for misappropriation of trade secrets against Prime based on allegations that Mr. Hernandez became aware of SmartStop's trade secrets by virtue of his employment and also copied SmartStop files, including sensitive trade secrets, and sent them to his personal email address before his departure. argues it has a reasonable possibility of prevailing because its evidence shows it has never received or solicited potential trade secret information from Mr. Hernandez.

In support of the instant Motion, Prime's Chief Operating Officer, Dimitrios Papiris, asserts that he interviewed Mr. Hernandez and at no point during the employment process did he or anyone else at Prime request that Mr. Hernandez provide any information or documents he had access to or possession of by virtue of his employment with SmartStop. He further asserts that Prime has at no point received any information or documents that Mr. Hernandez is alleged to have taken from SmartStop. Further, after this litigation commenced, Prime and Mr. Hernandez entered into a Confidentiality and Non-Use Agreement which provides that Mr. Hernandez has never directly or indirectly shared any SmartStop materials to Prime.

SmartStop argues handwritten notes produced by Prime in discovery discredit Prime's position. Those handwritten notes reference questions about business information such as driving revenue, pricing model strategy, occupancy levels, vacate rates, marketing, predictive modeling and forecasting tools, and attrition monitoring).

		In light of the handwritten notes, which Prime produced as notes from an interview with Mr. Hernandez, the Court cannot conclude that Prime has a reasonable possibility of prevailing on SmartStop's trade secret cause of action based on the argument that Prime has never received or solicited any trade secret information from Mr. Hernandez. Thus, the Motion for Undertaking is DENIED. <i>Moving party to give notice.</i>
105	Simmons vs. Brower Law Group, APC, 26-01548869	Defendant Brower Law Group, APC ("Defendant") filed four discovery motions wherein Defendant moves to Compel Plaintiff Caroline Simmons to provide further responses to the following discovery: (1) Requests for Production, Set One plus \$2,700 in sanctions, (2) Requests for Admission, Set One plus \$2,670 in sanctions, (3) Form Interrogatories, Set One plus \$2,430 in sanctions, and (4) Special Interrogatories Set One plus \$2,970 in sanctions. Plaintiff/Cross-Defendant Caroline Simmons ("Plaintiff") opposes the motion. The Motions are DENIED as untimely. Motions to compel further responses to interrogatories must be noticed "within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2030.300, subd. (c).) However, the "service of unverified responses and objections" does not "activate[]" the 45-day deadline. (<i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 136 [holding that 45-day time period to file a motion to compel further responses to interrogatories does not begin to run upon service of combination of unverified factual responses and objections, where the motion challenges only the objections].) "[D]iscovery deadlines are mandatory and we have treated them as jurisdictional." (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 322 [citing <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410].) "Where a party does